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9
10 **UNITED STATES DISTRICT COURT**
11 **DISTRICT OF ALASKA**

12 ALAN D. LOPEZ,

13 Plaintiff,

14 v.

15 BUFORD C. DELAUGHTER, JR., and
16 GO 2 TRANSPORTATION, LLC

17 Defendants.

18 Civil Action No. _____

19 **COMPLAINT FOR DAMAGES**

20 **JURY TRIAL DEMANDED**

21 **COMPLAINT FOR DAMAGES**

22 COMES NOW the plaintiff ALAN D. LOPEZ, by and through his attorneys, the law
23 firm of Dawson Law Group, LLC, and complains and alleges against the defendants as
24 follows:

25 **I.**

26 **SUBJECT MATTER JURISDICTION**

1. The Court has subject matter jurisdiction pursuant to 28 U.S.C. Section
1332(a)(1):

a. The matter in controversy exceeds the sum of \$75,000.00, exclusive of
interest and costs; and

b. The matter is between citizens of different states.

2. Venue is proper pursuant to 28 U.S.C. Section 1391(b).

II.

PARTIES

3. Plaintiff, ALAN D. LOPEZ, is a resident of the Third Judicial District for the State of Alaska.

4. According to plaintiff's best information and belief, defendant BUFORD C. DELAUGHTER, JR. is a resident and inhabitant of Irdell County, North Carolina.

5. According to plaintiff's best information and belief, defendant GO 2 TRANSPORTATION, LLC is an Arizona limited liability company with its principal place of business located in Maricopa, Arizona.

III.

FIRST CAUSE OF ACTION NEGLIGENCE

6. Plaintiff realleges and incorporates by reference hereto each and every allegation contained in Paragraphs 1 – 5 above, inclusive.

7. That for all times hereinafter, and more particularly, on or about January 26, 2011, the defendant, BUFORD C. DELAUGHTER, JR. operated the 2007 Freightliner Tractor Trailer, VIN 1FUJCRCK17PY17565, owned by defendant GO 2 TRANSPORTATION, LLC ("GO 2"), that struck plaintiff's vehicle from behind.

8. That for all times hereinafter, and more particularly, on or about January 26, 2011, defendant GO 2 did operate and conduct and operate a trucking business in multiple states throughout the United States of America and said business consisted of, among other things, the transportation of goods, merchandise, etc.

1 9. That for all times hereinafter, and more particularly, on or about January 26,
2 2011, defendant, GO 2 operated the 2007 Freightliner Tractor Trailer, VIN
3 1FUJCRCK17PY17565.

4 10. That on or about on or about January 26, 2011, defendant, GO 2 controlled the
5 2007 Freightliner Tractor Trailer, VIN 1FUJCRCK17PY17565.

6 11. That on or about on or about January 26, 2011, defendant, GO 2 maintained
7 the 2007 Freightliner Tractor Trailer, VIN 1FUJCRCK17PY17565.

8 12. That on or about January 26, 2011, the defendant, BUFORD C.
9 DELAUGHTER, JR. controlled the 2007 Freightliner Tractor Trailer, VIN
10 1FUJCRCK17PY17565, owned by defendant GO 2, that struck plaintiff's vehicle from
11 behind.
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13 13. That on or about January 26, 2011, the defendants, BUFORD C.
14 DELAUGHTER, JR. and GO 2, maintained the 2007 Freightliner Tractor Trailer, VIN
15 1FUJCRCK17PY17565, that struck plaintiff's vehicle from behind.
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17 14. That for all relevant times mentioned herein, on or about January 26, 2011, the
18 defendant, BUFORD C. DELAUGHTER, JR., operated, controlled and maintained the 2007
19 Freightliner Tractor Trailer, VIN 1FUJCRCK17PY17565, owned by defendant GO 2, that
20 struck plaintiff's vehicle from behind.

21 15. That on or about January 26, 2011, the defendant, BUFORD C.
22 DELAUGHTER, JR., was operating, in a negligent and unsafe manner, the 2007 Freightliner
23 Tractor Trailer, VIN 1FUJCRCK17PY17565, owned by defendant GO 2, that struck
24 plaintiff's vehicle from behind.
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1 16. That on or about January 26, 2011, while the plaintiff was slowing down to
2 stop for traffic on I-81 North, in Wythe County, Virginia, defendant BUFORD C.
3 DELAUGHTER, JR., while operating the 2007 Freightliner Tractor Trailer, VIN
4 1FUJCRCK17PY17565, owned, operated and maintained by defendant GO 2 in a negligent,
5 careless and reckless manner and at an excessive rate of speed under the conditions present
6 failed to slow the Tractor Trailer and drove the 2007 Freightliner Tractor Trailer, VIN
7 1FUJCRCK17PY17565, into the back of the vehicle in which plaintiff was driving, who was
8 at all times legally and lawfully operating his vehicle, while he was slowing down to stop for
9 traffic, causing plaintiff, to sustain severe, permanent and personal injuries, when he was
10 driven into the rear of a second Tractor Trailer and then into a third Tractor Trailer.
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12 17. That said accident was caused as a result of defendant BUFORD C.
13 DELAUGHTER, JR.'s negligent, careless and reckless of the operation of the 2007
14 Freightliner Tractor Trailer, VIN 1FUJCRCK17PY17565, owned, operated and maintained
15 by defendant GO 2, struck plaintiff's vehicle from behind and driving thereby forcing it into
16 two additional tractor Trailers.
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18 18. That as a direct and proximate result of the foregoing, the defendants did
19 violate traffic safety rules and said violations was a proximate cause of the injuries sustained
20 by the plaintiff.
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22 19. That as a result of the forgoing, the plaintiff was rendered sick, sore, was
23 caused to suffer and was injured, did sustain and continues to sustain great pain, suffering,
24 inconvenience, and permanent and long lasting loss, had incurred and will continue to incur
25 future medical expenses, as a result of said injuries in an amount in excess of the
26 jurisdictional limits of this Court to be proven at trial.

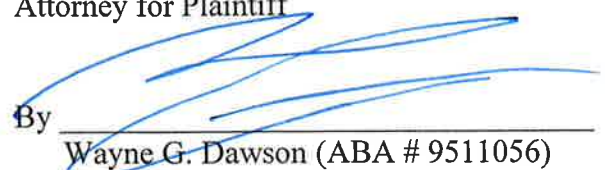
1 20. That all of the foregoing occurred solely as a result of the carelessness,
2 recklessness, culpable conduct and negligence of the defendants in the ownership, operation,
3 management, maintenance and control of the Tractor trailer being operated by defendant
4 BUFORD C. DELAUGHTER, JR. and owned by defendant GO 2; in that said vehicle was
5 operated at an excessive and dangerous rate of speed under the conditions present; in that
6 defendant BUFORD C. DELAUGHTER, JR failed to take cognizance of plaintiff who was
7 lawfully upon said highway; in that defendants BUFORD C. DELAUGHTER, JR. and GO 2
8 failed to maintain the Tractor trailer at issue in this case in proper condition and in proper
9 state of repair; in that defendant BUFORD C. DELAUGHTER, JR. failed to apply brakes in
10 time to avoid forcibly striking plaintiff; in that defendant BUFORD C. DELAUGHTER, JR.
11 failed to see and coming into contact with plaintiff; in that defendant BUFORD C.
12 DELAUGHTER, JR. failed to take proper evasive action to avoid striking plaintiff from
13 behind; in that defendant BUFORD C. DELAUGHTER, JR. placed plaintiff in a dangerous
14 and perilous condition while plaintiff was lawfully on the aforesaid highway; in that
15 defendant BUFORD C. DELAUGHTER, JR. failed to observe the rules of the road; in that
16 defendant BUFORD C. DELAUGHTER, JR. caused the accident.
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19 21. That as a result of the foregoing, plaintiff was damaged in an amount to be
20 proven at time of trial.

21 WHEREFORE, plaintiff demands judgment against the defendants, jointly and
22 severally, be rendered as to each of them in an amount to be proven at trial as compensatory
23 damages, and special damages in an amount to be proven at trial, plus interest from the date
24 of the occurrence at the prevailing rate, plus attorney fees, plus the cost of this action and for
25 such other and further relief as the court deems just and equitable.
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1 DATED this 22 day of January, 2013.

2 DAWSON LAW GROUP, LLC
3 Attorney for Plaintiff

4 By 
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6 Wayne G. Dawson (ABA # 9511056)
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